

**NATIONAL EDUCATION ASSESSEMENT AND EXAMINATION AGENCY
(NEAEA)
NATIONAL EXIT EXMINATION FOR LL.B PROGRAMME STUDENTS
OF ETHIOPIAN LAW SCHOOLS
2017/18 ACADEMIC YEAR**

May 09, 2018

Time Allowed: 3 Hours

PART II: PUBLIC LAWS

GENERAL DIRECTIONS

1. ATTEMPT ALL QUESTIONS ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
2. LAWS THAT CAN BE BROUGHT TO THE EXAM ROOM ARE THE FDRE CONSTITUTION, THE CRIMINAL CODE, INCOME TAX PERCOLATION, AND THE SOLID WASTE MANAGEMENT PROCLAMATION.
3. SUPPORT YOUR ARGUMENTS WITH PERTINT LEGAL PROVISIONS WHENEVER APPROPRIATE.
4. WRITE YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.
5. YOU MAY ASSUME FACTS WHERE NECESSARY.
6. WRITE LEGIBLY.
7. SWITH OFF YOUR MOBILE PHONE.

DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.



12/05/2018

Time Allowed: 3 Hours

PART II: PUBLIC EXAM

GENERAL DIRECTIONS

1. ATTEMPT ALL QUESTIONS ON THE BASIS OF SPECIFIC

INSTRUCTIONS GIVEN IN EACH QUESTION.

2. LAWS THAT HAVE BEEN BROUGHT TO THE EXAM ROOM ARE

THE FEDERAL CONSTITUTION, THE CRIMINAL CODE, INCOME

TAX REGULATION, AND THE SOLID WASTE MANAGEMENT

REGULATION.

3. SUPPORT YOUR ANSWERS WITH PERTINENT LEGAL

PROVISIONS WHEREVER APPROPRIATE.

4. WRITE YOUR ANSWERS IN A SEPARATE ANSWER SHEET

ATTACHED TO THE EXAM.

5. YOU MAY ASK THE FACTS WHERE NECESSARY.

6. WRITING TIME.

7. SIGN OFF YOUR ANSWER SHEET.

DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.



SECTION I: MULTIPLE CHOICES (30%)

CHOOSE THE BEST ANSWER FOR EACH QUESTION FROM THE ALTERNATIVES GIVEN.

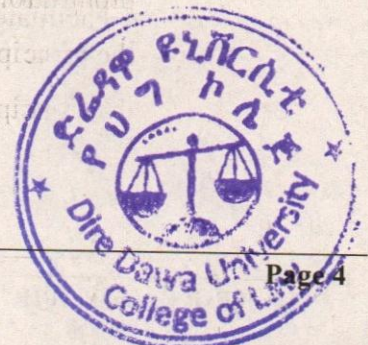
1. Identify the option that is **correct** about the House of the Federation in Ethiopia.
 - A. It represents the regional states.
 - B. Its members are required to be politically insulated.
 - C. It has equal legislative power with the House of Peoples' Representatives.
 - D. The maximum number of its members is limited.
 - E. Its composition is predominantly population based.

2. Which one of the following is **correct** about the configuration of Regional States in the Ethiopian Federation?
 - A. Their territories coincide with the boundaries of the self-governing regions during Transitional government.
 - B. Their territories coincide with the territorial organization of the previous provinces during the unitary system.
 - C. Their territories are established in a way that creates homogenous regional states.
 - D. Their territorial configuration reflects the need to accommodate diversity at regional level.
 - E. Their territorial configuration reflects that establishment of new states is less likely.

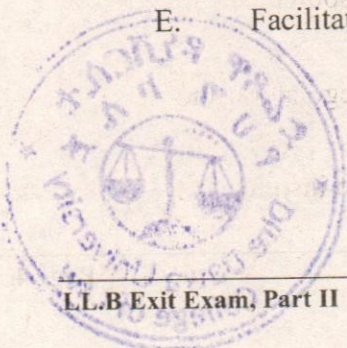


3. Based on the nature of governments, constitutions can be classified as;
- A. Presidential or Parliamentary.
 - B. Federal or Unitary.
 - C. Unicameral or Bi-cameral.
 - D. Written or Unwritten.
 - E. Rigid or flexible.
4. Which one of the following principles of constitutional interpretation explains how to proceed in cases where two constitutional values are found conflicting?
- A. The principle of supremacy of the Constitution
 - B. The Principle of Proportionality
 - C. The Principle of unity of the constitution
 - D. The principle of practical concordance
 - E. The Principle of indeterminacy
5. In Ethiopia, all of the following are independent agencies **EXCEPT**:
- A. The Institution of Ombudsman.
 - B. The Human Right Commission.
 - C. The Federal Ethics and Anti-corruption Commission.
 - D. The National Election Board.
 - E. The National Census Commission.
6. The concept *principle of legality* embraces all of the following ingredients **EXCEPT**:
- A. the principle of no law, no offence.
 - B. the principle of prohibition of death penalty.
 - C. prohibition of double jeopardy.
 - D. the principle of no law, no punishment.
 - E. the principle of no creation of offence by analogy.

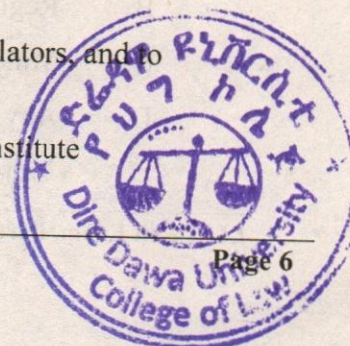
7. A crime of possession is different from other kinds of crimes because:
- A. it forbids doing an act that is harmful to the society.
 - B. it compels individuals to do acts that are deemed necessary.
 - C. it penalizes individuals with certain status/qualities.
 - D. it penalizes individuals who are found having/possessing certain items.
 - E. it penalizes individuals for being negligent.
8. Article 420(1) of the Criminal Code states; “*Any public servant who fails to carry out his duties in a proper manner and to the prejudice of State, public or private interest, is punishable with fine not exceeding one thousand Birr or simple imprisonment not exceeding six months.*” What specific moral element does this article require?
- A. Direct intention
 - B. Indirect intention
 - C. Advertent negligence
 - D. Intention in general
 - E. Both intention and negligence
9. In light of the relevant provisions of the Criminal Code, which one is **NOT** correct about *renunciation* and *active repentance*?
- A. Both of them represent attempt to commit crimes.
 - B. Active repentance represents completed attempt.
 - C. Both of them represent incomplete attempt.
 - D. Both of them can be used to mitigate penalty.
 - E. Active repentance may entail exemption from penalty.
10. Identify the test that may **NOT** be used to prove insanity in general.
- A. Blind obedience test
 - B. Irresistible impulse test
 - C. Product (Durham) test
 - D. Right-wrong test
 - E. Substantial capacity test



11. Despite its ineffectiveness due to global political rivalries, the League of Nations (1919) had left strong legacies in the protection of:
- A. Rights of minorities.
 - B. Rights of workers.
 - C. Rights of children.
 - D. Rights of women.
 - E. Individual rights.
12. Which one of the following is **NOT** a unique feature that can be observed from the recognition and listing of human rights under the FDRE Constitution as compared to the global especially the UN system?
- A. Recognition of all categories of human rights without establishing classes/hierarchies
 - B. A more limited and unusual list of non-derogable rights during state of emergency
 - C. Its incorporation of the right to clean and healthy environment.
 - D. Its incorporation of the right to development.
 - E. Recognition of the right to life.
13. Under international human rights law, which one of the following is **NOT** part of states' obligations to protect the human rights of their subjects?
- A. Prevent violations of rights by any individual or non-state actor.
 - B. Eliminate any incentives to violate rights by third party.
 - C. Provide access to legal remedies when violations occur.
 - D. Assist citizens to improve their living standards.
 - E. Facilitate the enjoyment of human rights.



14. An example of classical human right the realization of which simply requires non-interference by a state is:
- A. Freedom from want.
 - B. Freedom of speech.
 - C. Right to access to education and health care.
 - D. Right to fair trial.
 - E. Right to housing.
15. Which one of the following international documents defined the concept of 'sustainable development' for the first time?
- A. Stockholm Declaration
 - B. World Charter for Nature
 - C. *Brundtland* Commissions' Report
 - D. Rio Declaration.
 - E. Agenda 21
16. The concept of 'environmental democracy' is best explained by one of the following principles. Which one is it?
- A. Public participation
 - B. Prior informed consent
 - C. Public trust
 - D. Access to information
 - E. Access to justice
17. One of the following alternatives is **NOT** true about the purposes of liberalizing standing right in environmental cases.
- A. To ensure the realization of diffused environmental rights which could hardly be enforced through conventional private litigation,
 - B. To allow the use of private resources for the enforcement of environmental laws during the inaction or abuse of regulatory organs.
 - C. To ensure sustainable environmental protection and resource development through public participation.
 - D. To promote the accountability and responsiveness of regulators, and to ensure good governance in environmental matters.
 - E. To enable alert individuals and public interest groups to institute frivolous court cases against polluters.



18. In Ethiopia, one of the following environmental management areas falls principally under the jurisdiction of urban administrations.
- A. Solid waste management
 - B. Wildlife conservation
 - C. Hazardous waste handling
 - D. River basin management
 - E. Radiation protection
19. All of the following are motives for establishing a federation **EXCEPT** a motive to:
- A. manage a conflict.
 - B. create economic union.
 - C. build strong defense force.
 - D. launch war of aggression against other sovereign states.
 - E. use it as a tool of managing diversity.
20. Which one of the following is an **express** entitlement of regional governments in Ethiopia?
- A. Regional self-rule
 - B. Participation in law and policy making at the center
 - C. Establishing national standards and basic policy criteria
 - D. Formulating foreign investment policies
 - E. Enacting laws necessary to administer political parties and elections
21. Who is expressly authorized to exercise the right to secession under the FDRE Constitution?
- A. Nations, Nationalities and Peoples
 - B. Regions as a territory
 - C. Minorities in the regions
 - D. Any ethnic group occupying any level of territory
 - E. More populous regions

22. In a federal arrangement, the doctrine of balance advocates:
- A. the subordination of the regional governments to the central government.
 - B. the subordination of the central government to the regional governments.
 - C. the absolute equality of both tiers of governments.
 - D. the subordination of the central government to other sovereign states.
 - E. the absolute equality of the central government to other sovereign states.
23. Which one of the following is **NOT** a subject of international law?
- A. States
 - B. International Organizations
 - C. Individuals committing International Crimes
 - D. Multi-National Corporations
 - E. Regional Organizations like the AU
24. Which one of the following statements is **NOT** correct about members of the UN Security Council?
- A. Non-permanent members hold their seats on rotating basis by geographic region.
 - B. All the 15 members of the Security Council are elected by the UN General Assembly.
 - C. A state needs a two-thirds majority vote by the UN General Assembly to be a non-permanent member of the Council.
 - D. Non-permanent members of the UN Security Council are elected for two years term.
 - E. Ethiopia was elected as Non-permanent member of the UN Security Council in 2017.



25. What is the meaning of sovereignty of states under international law?
- A. Sovereignty means being recognized by all other States.
 - B. Sovereignty means to be able to enter into treaties and join the UN.
 - C. Sovereignty means possessing the right to defend oneself.
 - D. Sovereignty means freedom to determine one's own affairs without external interference.
 - E. Sovereignty means recognition by all permanent members of the UN Security Council.
26. Which one of the following statements is **INCORRECT** about tax?
- A. It is a coercive imposition.
 - B. It serves as a public revenue.
 - C. It is only imposed on persons/entities.
 - D. It regulates an economy.
 - E. It is solely imposed on cash income.
27. Classification of taxes into direct and indirect taxes is based on:
- A. Progressivity of tax rate.
 - B. Tax accounting.
 - C. Tax liability and economic incidence of revenue.
 - D. Mode of payment.
 - E. Tax assessment.
28. One of the following alternatives is **NOT** a purpose of tax. Which one is it?
- A. Encouraging export trade
 - B. Discouraging harmful consumption
 - C. Generation of revenue
 - D. Stabilization of an economy
 - E. Regulation of government's budget

29. The Ethiopian income tax jurisdiction is based on:

- A. Residence Jurisdiction.
- B. Source Jurisdiction.
- C. Age Jurisdiction.
- D. Both Residence and Source Jurisdiction.
- E. It isn't known.

30. Which level of government is constitutionally empowered to levy and collect tax from employees of a share company residing/located in a given regional state?

- A. The Regional State
- B. The Federal Government
- C. Both the Federal and Regional Governments concurrently
- D. Such power is undesignated
- E. Such companies are non taxable



SECTION II: MATCHING (10%)

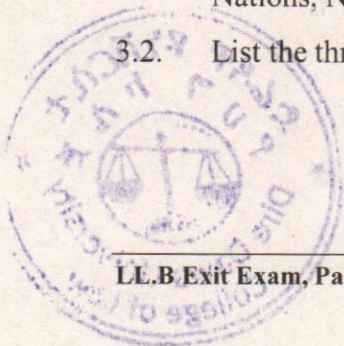
CHOOSE THE BEST MATCH FOR THE ITEMS UNDER A FROM THE ITEMS UNDER B.

- | <u>A.</u> | <u>B.</u> |
|--|--|
| 1. Issues that can be entertained by courts | A. Insanity |
| 2. Protecting nature for its own sake | B. Tax crime |
| 3. Bamako Convention (1991) | C. Trade in new technology |
| 4. Reflection of unity in Ethiopian Federation | D. Power division |
| 5. Recognition creates statehood | E. Declaratory theory |
| 6. Misleading tax statement | F. Socio-economic rights |
| 7. Withholding agent | G. Eco centrism |
| 8. Exemption with credit | H. Anthropocentrism |
| 9. Loss of cognitive and will powers | I. Justiciable Matters |
| 10. Progressive realization of human rights | J. Employer |
| | K. Civil and Political Rights |
| | L. Constitutive theory |
| | M. Matters out of court's jurisdiction |
| | N. Trade in Hazardous Wastes |
| | O. Cassation over cassation |
| | P. Zero-rating |

SECTION III: SHORT ANSWER (10%)

GIVE SHORT ANSWERS TO THE FOLLOWING QUESTIONS.

- 3.1. Mention three constitutional stipulations in which Ethiopia's commitment to the right of Nations, Nationalities and Peoples is reflected. (5%)
- 3.2. List the three pillars of sustainable development. (5 %)



SECTION IV: ESSAY (20%)

- 4.1. Write a short essay of explaining the ways in which the international community tries to accommodate varying differences among states during drafting and adoption of international human rights instruments. (10%)
- 4.2. Write a short essay of explaining why some scholars say *the exact scope of the right to self-determination is not often clear*. (10%)

SECTION V: HYPOTHETICAL CASES (30%)

READ THE FOLLOWING HYPOTHETICAL CASES VERY CAREFULLY AND ANSWER THE QUESTIONS THAT FOLLOW.

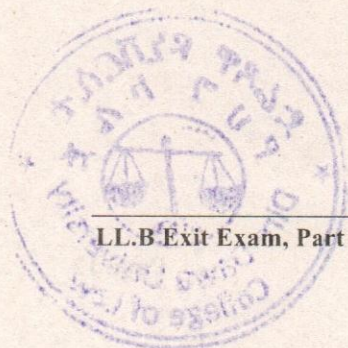
5.1. HYPOTHETICAL CASE I (15%)

After staying in a relationship for over a year, Koket and Hamerson got married last month. Similarly, in order to consummate their marriage, the two began having sexual intercourse from day one of their marriage. However, Koket is not feeling comfortable with the sex part of the marriage. As a result, she began resisting offers to have sex from Hamerson on a regular basis. On the other hand, Hamerson is not buying Koket's refusal to have sex with him. Consequently, last week, following her refusal to have sex with him, Hamerson compelled Koket to perform sexual act with him. Of course, left with no other option, Koket submitted to the demands of Hamerson and the sexual intercourse took place. However, soon after Hamerson left for work, Koket reported the matter to the nearby police station which eventually led to the arrest of Hamerson on suspicion that he committed the crime of rape. *If you were a public prosecutor working in collaboration with the said police station, what will you do with this case; that is, will you charge Hamerson and, if so, for which crime?* (15%)



5.2. HYPOTHETICAL CASE II (15%)

Arina is an island in the west coast of Africa. Two years ago, an internal conflict arose between the government of **Arina** and a political movement, called *Arina Peoples' Movement* (APM). The state of **Rico** is known to support the APM by providing, *inter alia*, finance, arms and military trainings. Similarly, it has been established that the APM has participated in illegal activities including assassination of government officials in **Arina**. Now, bearing the above hypothetical facts in mind, if you were requested to give the government of **Arina** legal advice on the question of whether the acts of the APM can be attributable to the state of **Rico**, what would your advice be?



W11

W12

W13

22

HC